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March 17, 2026

VIA EEOC RESPONDENT PORTAL

Jacquie Jones-Mounts, Acting Local Director
Gregory Somers, Investigator
Greenville Local Office
United States Equal Employment Opportunity Commission

Re: Charging Party's Rebuttal to Respondent's Position Statement

Complainant: Elizabeth Lord

Respondent: Contender Development, Inc. d/b/a Contender America

EEOC Charge No.: 436-2026-00670

Related Charge No.: 436-2026-00698 (Blackstream International Real Estate)

Dear Ms. Jones-Mounts and Mr. Gregory Somers:

Charging Party Elizabeth Lord respectfully submits this rebuttal to the Position Statement filed by Respondent Contender Development, Inc. d/b/a Contender America ("Contender" or "Company") through its counsel, Fisher & Phillips LLP, on February 16, 2026. As set forth below, Respondent's response is characterized by selective framing, factual omission, and legal overstatement. When the record is considered in its totality—as the ADEA requires—the evidence establishes a prima facie case of age discrimination, hostile work environment, and retaliation.

Ms. Lord has also filed a related charge against Blackstream International Real Estate (EEOC Charge No. 436-2026-00698), arising from the same pattern of conduct and the same period of discrimination. The two charges involve overlapping facts, common decision-makers, and a shared discriminatory scheme, and should be considered together.

I. PRELIMINARY OBSERVATIONS: THE VOLUME OF EVIDENCE IS NOT A WEAKNESS

Respondent's response repeatedly implies that because Ms. Lord documented numerous incidents, her claims are somehow less credible or amount to a "laundry list." This framing inverts the proper legal analysis. Under the ADEA, the Commission evaluates the totality of the circumstances. A pattern of conduct—systematic exclusion, removal of authority, denial of resources, age-related remarks, and retaliation following protected activity—is more probative of discriminatory intent

than any single incident in isolation. The volume of documented grievances is not evidence of frivolousness. It is evidence of a pattern.

The proper question before this Commission is not whether Ms. Lord has too many complaints. The proper question is whether those complaints have merit. The answer, as the following analysis demonstrates, is yes.

II. REBUTTAL TO RESPONDENT’S CHARACTERIZATION OF MS. LORD’S EMPLOYMENT HISTORY

A. Respondent Mischaracterizes the Nature of Ms. Lord’s Role and Her Relationship with Ms. Cape

The Position Statement claims that the relationship between Ms. Lord and co-worker Haley Cape “deteriorated” because Ms. Lord “viewed Cape as a subordinate” and “began demanding” updates, causing friction. This characterization omits critical context and misrepresents the organizational structure.

Ms. Lord was hired in July 2022 as Director of Marketing and held full-scope marketing and branding authority for both Blackstream and Contender from the outset, including graphic design, website management, advertising, PR, and corporate branding—including designing Contender’s flag logo. Ms. Cape was not hired until August 2023, initially in an administrative and graphic design support role. An organizational chart circulated by CEO Michael Mumma (Exhibit E) showed Ms. Cape as Ms. Lord’s direct report, and HR Director Cameron Aldridge’s March 13, 2025 written memo A) explicitly confirmed that both Ms. Cape and Alex Weldon reported to Ms. Lord and that Ms. Lord held budget authority. When Ms. Lord requested that Ms. Cape keep her informed of work and complete assigned tasks, she was exercising the supervisory authority the Company itself had confirmed in writing—not “demanding” information she had no right to.

The Company’s framing of these interactions as mere interpersonal friction obscures the underlying reality: Ms. Lord’s established authority was being systematically undermined and transferred to a substantially younger employee who had been given special, undisclosed access to senior leadership. Most critically, Ms. Lord was deliberately excluded from a major corporate rebranding of Elliott Homes that CEO Michael Mumma planned and executed in secret sessions with Ms. Cape—concealing the project entirely from the Director of Marketing whose job it was to oversee such initiatives.

B. The Role of Personal Relationships in Employment Decisions

The Commission should be aware of a pattern of personal relationships that Ms. Lord believes directly influenced the employment decisions at issue in this Charge—including the elevation of substantially younger employees, the stripping of Ms. Lord’s authority, and the integrity of the Company’s internal investigation. Ms. Lord raises these facts not to sensationalize, but because the EEOC investigator specifically requested during the parties’ initial telephone conference on

March 14, 2026 that this information be included in Ms. Lord's written rebuttal, as it is relevant to understanding the motivations behind the employment decisions that form the basis of this Charge.

The Mumma-Wrenn Relationship and Its Effect on Hiring and Promotions

Annette Wrenn was hired as a Support and Operations Assistant on or about February 14, 2025. Ms. Lord has since learned, through direct communication with Christine Brodsky (Chief Operating Officer), that Ms. Brodsky was directed to hire Ms. Wrenn—rather than independently selecting her through a merit-based process. Ms. Brodsky stated to Ms. Lord directly that she had been “told” to hire Ms. Wrenn.

It is Ms. Lord's understanding, based on information available to her, that Ms. Wrenn was engaged in a personal relationship with then-CEO Michael Mumma at or around the time of her hiring. This relationship subsequently became known within the organization. Ms. Lord understands that when agents and other staff raised concerns about Mr. Mumma's and Ms. Wrenn's conduct with Ford Elliott, CEO of Contender and founder of Blackstream, the Company made the decision to terminate Ms. Wrenn. Ms. Wrenn's separation from the Company in the Summer of 2025 was accompanied by what was widely understood internally to be a severance package substantially exceeding one year's salary.

Ms. Cape's Relationship with Mr. Mumma and Its Employment Consequences

Ms. Lord also understands, through secondhand information she has received, that Mr. Mumma provided Ms. Cape with a discounted apartment in a corporate apartment building, and subsequently requested keys to that apartment from Ms. Cape for the purpose of private meetings with Ms. Wrenn. Ms. Lord wishes to be transparent with the Commission about the source of this information: it originated with Ms. Cape herself, who confided this information to Julia-Reagan Clark, a former employee of Mr. Mumma and a colleague of Ms. Cape. Ms. Clark subsequently relayed this information to another colleague, from whom Ms. Lord received it. Ms. Lord acknowledges this is secondhand information and does not represent it as firsthand knowledge. However, she offers it in good faith and notes that Ms. Clark is a potential witness the Commission may wish to contact for direct testimony.

Relevance to This Charge

This pattern of personal relationships is directly relevant to Ms. Lord's ADEA claims for the following reasons. First, it provides context for why Ms. Cape and Ms. Wrenn—both substantially younger than Ms. Lord—received expanded responsibilities, elevated titles (Exhibit K), and management access that had previously belonged to or been denied to Ms. Lord. The favoritism shown to these employees was not merit-based; it was relationship-based, and Ms. Lord—as the older, unconnected employee—bore the professional cost of those relationships. Second, it raises serious questions about the independence of the Company's internal investigation. HR Director Cameron Aldridge conducted the November 2025 investigation into Ms. Lord's discrimination complaint in an environment where the CEO had been engaged in undisclosed personal conduct affecting employment decisions, and where Aldridge himself was simultaneously the subject of a

harassment allegation made by Ms. Wrenn. The Commission should weigh these circumstances when evaluating the weight to be given to the Company's internal finding of no substantiation.

Ms. Lord respectfully requests that the Commission, in the exercise of its investigative authority, contact Ms. Julia-Reagan Clark as a potential witness regarding the apartment arrangement and related matters.

C. The Transition to Contender Was a Constructive Demotion, Not a Lateral Move

Respondent claims that Ms. Lord's transition from Blackstream to Contender in May 2025 involved no change in compensation, duties, or conditions of employment. This characterization is misleading and incomplete.

The record establishes that the transition was preceded by a systematic stripping of Ms. Lord's authority. On March 13, 2025—six weeks before the transition—HR Director Cameron Aldridge issued a written memo (Exhibit A) reaffirming Ms. Lord's supervisory authority over Haley Cape and Alex Weldon, and her control over the marketing budget. Six days later, on March 19, 2025, without notice and without HR present, CEO Michael Mumma verbally revoked that authority entirely, removing both subordinates from her supervision and transferring all social media responsibilities to Cape and Annette Wrenn. This sequence—reaffirmation followed immediately by revocation—is not consistent with a legitimate, pre-planned organizational restructuring. It is consistent with retaliation.

Ms. Lord inferred—based on the timing of her removal from Blackstream's payroll and the May 12, 2025 emails, website title changes, and signature block changes for Ms. Wrenn and Ms. Cape—that, in order to justify increased compensation and expanded responsibilities for these substantially younger employees, Mr. Mumma needed to move Ms. Lord, an older Marketing Director, off Blackstream's payroll and shift her duties to Contender.

By May 1, 2025, Ms. Lord transitioned to a "Director of Marketing" role at Contender that, by the Company's own account, had no dedicated staff and no budget that ever materialized. Her title remained the same; her function as a director did not. A director title without staff, without budget, without decision-making authority, and subject to a 90.3% non-response rate on work submissions—documented across 30 submissions between May and November 2025 (Exhibit I)—is not the same role. It is a constructive demotion.

Respondent's assertion that her role at Blackstream "was not assumed by a younger employee" is a deliberate misdirection. In a September 5, 2025 email from Christine Brodsky to Daniel Burke of Guided Luxury (Exhibit C), Haley Cape was explicitly identified and introduced as Director of Marketing. Furthermore, on May 12, 2025—the same day Ms. Lord signed her acceptance of the transition to Contender—internal emails and the Company's own website show that Ms. Cape was simultaneously promoted from "Experiences and Services Coordinator" to "Senior Graphic Designer and Brand Manager," and Ms. Wrenn was promoted from "Support and Operations

Manager” to “Director of Operations.” The timing is not coincidental: on the very day Ms. Lord was moved out, younger employees were elevated into her substantive functions.

The relevant comparators are not who filled Ms. Lord’s exact title at Blackstream. The relevant comparators are Ms. Cape (age 28) and Ms. Wrenn (approximately age 30), who received the substantive marketing responsibilities, strategic project authority, and management visibility that were stripped from Ms. Lord.

D. Respondent’s Characterization of the Offer Letter Dispute Reflects Poorly on the Company

Respondent notes that Ms. Lord refused to sign the standard offer letter and employee handbook acknowledgment, implying this reflects bad faith on her part. To the contrary: Ms. Lord objected to a non-compete provision that the Company then conceded was inappropriate and removed. Her refusal to sign, absent that correction, was legally reasonable.

III. REBUTTAL TO RESPONDENT’S “NO ADVERSE EMPLOYMENT ACTION” DEFENSE

A. The Verbal Warning Was Retaliatory in Nature, Timing, and Application

Respondent characterizes the December 8, 2025 verbal warning as a routine counseling with no employment impact. The timing, context, stated rationale, and asymmetric application of this discipline tell a very different story.

Ms. Lord filed her internal discrimination complaint on November 14, 2025. The verbal warning was issued approximately three weeks later. Courts have consistently held that temporal proximity between protected activity and adverse action is evidence of retaliatory motive. Three weeks is well within the range courts have found sufficient to establish a causal link.

Respondent characterizes Ms. Lord’s statements about the Company’s finances as “entirely false.” This characterization is not only inaccurate—it is directly contradicted by Ms. Lord’s own contemporaneous conduct and by subsequent events.

On February 25, 2026, Ms. Lord sent her supervisor Thomas Phillips a formal memorandum (Exhibit G) identifying a reputational crisis in progress: an article published February 3, 2026 in InvestmentNews.com reporting on \$150 million litigation in Florida and specifically naming the Company’s principals and affiliated entities. Ms. Lord attached a professional “Reputational Risk Toolkit” she had prepared, including a holding statement, a staff communications protocol, and a partner fact sheet—exactly the crisis communications work her Director of Marketing role required her to perform. Mr. Phillips did not respond.

The following day, February 26, 2026, payroll was not made to any employees of the Company. Employees throughout the organization openly discussed their concerns about whether they would be paid, citing the Company’s financial situation and the InvestmentNews coverage (Exhibit J).

Also on February 26, HR Director Aldridge emailed Ms. Lord—not to acknowledge her February 25 warning or engage with her crisis communications work, but to ask her to design a flyer announcing a company-wide All Hands meeting. On February 27, 2026, Aldridge issued a company-wide memo stating that all companies had been funded and that payroll would be made. The All Hands meeting was held on March 3, 2026. The first agenda item was a Legal Update—addressing precisely the reputational and legal exposure Ms. Lord had flagged eight days earlier. No employees were reprimanded for discussing the Company’s financial stability during or after the payroll failure, despite the fact that those conversations were far more widespread, and far more public, than anything Ms. Lord is accused of saying.

The sequence is significant. Ms. Lord was disciplined in December 2025 for allegedly making “entirely false” statements about the Company’s financial condition. In February 2026, a payroll failure validated those concerns. The Company then addressed the exact reputational crisis Ms. Lord had identified—in a company-wide meeting, with a Legal Update as the first agenda item—without acknowledging her prior warning or involving her in the response. The “false statements” rationale for her verbal warning is not just pretextual. It is refuted by the Company’s own subsequent conduct.

Ms. Lord was receiving serious, specific concerns about the Company’s financial condition directly from senior finance personnel, including Chief Accounting Officer Maxine Turner and CFO Peter Reinert himself. For example, when a \$54,000 holiday party estimate was presented against a \$28,000 expectation, Reinert directed Ms. Lord to forward her concerns to CEO Ford Elliott. She did so and received no response. Shortly thereafter, Cameron Aldridge informed Ms. Lord that all corporate events were being moved to Human Resources—removing them from Marketing entirely. Her statements about financial concerns were not fabrications; they reflected the internal information she was receiving from the Company’s own senior leadership and, ultimately, from publicly reported litigation.

Furthermore, what Respondent characterizes as Ms. Lord telling an employee to “start looking for work” is untrue. Ms. Lord advised Alex Weldon—a younger colleague and former subordinate—to keep his professional portfolio and website current and be prepared in case conditions changed. This type of communication about job security and working conditions is consistent with protected concerted activity under federal labor law—not malicious rumor-spreading.

The Company’s treatment of other employees further confirms that the verbal warning was selectively applied. During the December 8, 2025 counseling meeting, Ms. Lord was asked to identify other employees who had made similar comments about the Company’s financial condition. She named several, including Chief Accounting Officer Maxine Turner, Chief Operating Officer Christine Brodsky, and Stuart Owen, among others. There was no follow-up. None of those individuals—all younger than Ms. Lord—were investigated, disciplined, or counseled in any manner disclosed to Ms. Lord or reflected in Respondent’s position statement. Respondent’s own position statement acknowledges that Owen made similar comments, yet the

evidentiary threshold required before any action was considered against him was materially higher than what was applied to Ms. Lord, who was disciplined within three weeks of her discrimination complaint based solely on a single secondhand text message, without corroboration. The asymmetry in the speed, severity, and evidentiary threshold applied to Ms. Lord versus every other employee who expressed identical concerns is direct evidence of disparate treatment—and of retaliation.

B. The “Excellent Performance Review” Argument Backfires

Respondent makes much of the fact that Thomas Phillips gave Ms. Lord an “excellent” performance rating and recommended a 5% raise in December 2025. This argument undermines rather than supports Respondent’s defense.

If Ms. Lord’s performance was genuinely excellent in every category, then the systematic removal of her authority, exclusion from strategic meetings, denial of office space, withholding of budget, and 90.3% non-response to her work submissions cannot be explained by legitimate performance concerns. A positive performance review eliminates poor performance as a non-discriminatory justification for the other adverse actions. It does not negate those actions.

Moreover, a positive performance review does not, as a matter of law, insulate an employer from retaliation claims. Retaliation claims turn on whether adverse actions followed protected activity—not on whether the employer also took some positive actions concurrently. Both things can be true: Ms. Lord can have received an excellent evaluation and simultaneously have been subjected to retaliatory discipline and constructive demotion.

The February 2026 events underscore this point further. The same supervisor who gave Ms. Lord an excellent review in December 2025 did not respond to her February 25, 2026 professional crisis communications memorandum. The Company then held an All Hands meeting addressing the precise reputational crisis she had flagged, without her involvement. An “excellent” performance rating is difficult to reconcile with the complete functional exclusion of the rated employee from the Company’s most pressing strategic challenge.

C. The Broader Pattern of Adverse Actions Respondent Fails to Address

Respondent’s position statement focuses narrowly on the Blackstream-to-Contender transition and the verbal warning, while conspicuously ignoring a documented pattern of adverse actions that the Commission should consider in its totality:

- Revocation of supervisory authority on March 19, 2025—six days after HR reaffirmed it in writing—following Ms. Lord’s report of Ms. Cape’s insubordination and firearm possession (Exhibit A).
- No response to Lord’s Email to Cameron Aldridge, HR Director on April 15, formally reiterating and clarifying issues and adverse actions and requesting the reason for being made to transition to Contender. (Exhibit H)

- Reassignment of Ms. Lord's office space at Blackstream without any notice or explanation (Exhibit D, photograph).
- Denial of office space at the 5 Century Drive location in May 2025, forcing Ms. Lord to locate her own workspace in a cubicle at another location.
- Cancellation of four or more scheduled CEO meetings between June and August 2025.
- Withholding of budget authority despite repeated requests, leaving Ms. Lord unable to execute the responsibilities of her Director title.
- Removal of the Holiday Gala and team-building events from Marketing to HR in August 2025.
- Lockout from her Blackstream email account on September 2, 2025—containing work communications and documentation material to this claim—after IT administrator Stuart Owen was allegedly instructed by Christine Brodsky and/or Michael Mumma not to reset her password after moving Lord to a new computer. (Exhibit F) This raises serious evidence spoliation concerns.
- 28 out of 31 work submissions receiving no response or acknowledgment between May and November 2025—a documented 90.3% non-response rate (Exhibit I).
- Non-response to Ms. Lord's February 25, 2026 Reputational Risk memorandum and crisis communications toolkit (Exhibit G), submitted to supervisor Thomas Phillips and marked *Important*, the day before a company-wide payroll failure—followed by the Company conducting an All Hands meeting on March 3, 2026 addressing the exact crisis Ms. Lord had flagged, without her involvement or acknowledgment.

Each of these actions, standing alone, might be characterized as a minor workplace frustration. Taken together, over a sustained period and directed consistently at the Company's oldest employee, they constitute a pattern of systematic marginalization that is actionable under the ADEA.

IV. REBUTTAL TO RESPONDENT'S DEFENSE OF THE REINERT REMARK

A. "No Recollection" Is Not a Denial

Respondent states that CFO Peter Reinert "denies making any comments" about Ms. Lord's age, and that HR Director Cameron Aldridge, who was present in the April 25, 2025 meeting, has "no recollection" of Reinert making such a comment. These are materially different statements. A denial is an affirmative assertion that the event did not occur. The absence of recollection is the absence of a denial. Aldridge does not say the remark was not made; he says he does not remember it.

By contrast, Ms. Lord's account is specific: she identifies the exact words ("At your age, why do you care about your reputation?"), the exact meeting, the exact date, and all attendees by name.

The Commission should weigh the specificity of Ms. Lord’s contemporaneous account against the non-confirmatory non-recollections of the individuals accused.

B. This Was Not a “Stray Remark” Under Applicable Legal Standards

Respondent’s invocation of the “stray remark” doctrine is legally misapplied. A stray remark, for purposes of ADEA analysis, is a comment made by someone not involved in the adverse employment decision, or a comment temporally remote from the adverse action. Neither condition is satisfied here.

Peter Reinert is the Company’s CFO and a member of its Executive Committee. He is a decision-maker. The remark was made in a meeting also attended by the CEO and the HR Director—the very individuals with authority over Ms. Lord’s employment conditions. The remark was made on April 25, 2025—the same day Ms. Lord was informed she would be moved to Contender full-time with no budget or staff. The remark was made in direct response to Ms. Lord raising concerns about the professional harm being done to her reputation. A remark made by a senior executive, in a decision-making meeting, in direct response to an employee’s expression of concern, on the day adverse action was taken, is direct evidence of discriminatory animus—not a stray remark.

C. The “Same Protected Class” Argument Has No Legal Validity

Respondent argues that because Peter Reinert is 67 years old, he could not have harbored age-based animus toward Ms. Lord. This argument has been consistently and thoroughly rejected by courts. The ADEA protects individuals over the age of 40. A 67-year-old executive can discriminate against a 74-year-old employee. The statute does not require that the discriminating party be outside the protected class.

The Supreme Court held in *General Dynamics Land Systems, Inc. v. Cline*, 540 U.S. 581 (2004), that the ADEA is specifically designed to protect older workers from discrimination even at the hands of employees who are themselves within the protected class.

Moreover, Mr. Reinert is not simply another older employee in the protected class. He is also the uncle of CEO and founder Ford Elliott. This close family relationship gives Mr. Reinert a degree of insulation from accountability and informal influence over employment decisions that other employees—including Ms. Lord—do not enjoy. The Commission should consider whether Mr. Reinert’s family relationship with the CEO affected the candor of the Company’s internal investigation into his remark, and whether it contributed to the absence of meaningful corrective action following Ms. Lord’s complaint.

V. REBUTTAL TO RESPONDENT’S RETALIATION DEFENSE

Respondent’s retaliation defense rests on two pillars: (1) the internal investigation found no substantiation, and (2) the same supervisor who received the complaint gave Ms. Lord an excellent review. Neither pillar holds.

First, the Company's internal investigation consisted of presenting Ms. Lord's allegations to the accused parties and accepting their denials. HR Director Aldridge's November 24, 2025 response letter reflects no independent corroboration, no witness interviews beyond the accused, and no documentary review. An investigation that relies exclusively on the denials of accused parties to reach a finding of no substantiation is not a good-faith investigation—it is a formality. The Commission should not defer to such an investigation. It is also important to note that Aldridge, Director of HR, was himself the subject of a harassment allegation made by Annette Wrenn during the time of his investigation into Ms. Lord's claims, raising further questions about his impartiality.

Second, the "same actor" inference is a factual argument, not a legal rule. Courts recognize that an employer may take both positive and retaliatory actions simultaneously. That Phillips gave Ms. Lord an excellent review does not preclude a finding that the verbal warning—issued by the same management team three weeks after her discrimination complaint—was retaliatory in nature and timing.

Third, the retaliation claim extends well beyond the verbal warning. The sustained pattern of exclusion, non-response, denial of resources, and authority stripping that continued after Ms. Lord's November 14, 2025 complaint constitutes ongoing retaliatory conduct regardless of the December performance review. The non-response to Ms. Lord's February 25, 2026 crisis communications memorandum—submitted the day before a company-wide payroll failure—and her subsequent exclusion from the Company's response to that crisis, are the most recent manifestations of that ongoing retaliation.

VI. REBUTTAL TO RESPONDENT'S CONSTRUCTIVE DISCHARGE DEFENSE

Respondent asserts that because Ms. Lord remained employed at the time of the Charge, no constructive discharge occurred. This reflects a misunderstanding of the constructive discharge doctrine.

Constructive discharge does not require that the employee have actually resigned at the time of filing. It requires that the employer deliberately made working conditions so intolerable that a reasonable person in the employee's position would have felt compelled to resign. The analysis is objective. Ms. Lord confirms that she remains employed as of the date of this filing, and that she is submitting this Charge while still employed in order to preserve her rights—consistent with EEOC guidance on anticipatory constructive discharge.

The conditions documented here—no staff, no budget, no office, no response to work product over a period of months, exclusion from all meaningful strategic functions, a formal disciplinary action three weeks after filing a discrimination complaint, and complete functional isolation from the Company's core business—readily satisfy that standard. That Ms. Lord continued to attempt to perform her job despite these conditions is evidence of her professionalism and commitment, not evidence that the conditions were tolerable.

VII. CRITICAL ISSUES RESPONDENT'S POSITION STATEMENT FAILS TO ADDRESS

The Commission should note that Respondent's position statement is conspicuously silent on several significant matters:

A. The September 2, 2025 Email Lockout and Potential Spoliation

IT administrator Stuart Owen told Ms. Lord that he had been instructed by Christine Brodsky and/or Michael Mumma not to reset her Blackstream email password, effectively cutting off her access to work communications and documentation relevant to this very claim (Exhibit F, preservation demand letter dated November 14, 2025). This is a potential evidence spoliation issue warranting specific inquiry by the Commission. The Company's preservation obligations under applicable law were triggered no later than November 14, 2025, when Ms. Lord served her formal preservation demand. The deliberate denial of password access two months earlier, in September 2025, is itself an adverse action and a red flag for intentional evidence destruction.

B. The March 18, 2025 Firearm Report

Ms. Lord reported to HR Director Aldridge that Ms. Cape had brought a firearm to the workplace. No meaningful action was taken. Two days later, Ms. Lord's supervisory authority—the very authority under which she had made the safety report—was revoked entirely. Prior to that revocation meeting, Ms. Lord notified Mr. Aldridge by text message (Exhibit H) that the meeting would take place and asked him to be present. He did not attend, later stating that “his name wasn't on the invitation.” The direct temporal connection between the safety report and the authority revocation is unaddressed by Respondent and constitutes additional evidence of retaliation.

C. The Payroll Rumor Pretext and the February 2026 Payroll Failure

The Company characterizes Ms. Lord's statements about financial concerns as “entirely false” statements justifying discipline. The full sequence of events refutes this characterization entirely.

Ms. Lord raised financial concerns directly with Ford Elliott, Peter Reinert, and Cameron Aldridge as early as the April 25, 2025 meeting. Internal discussion of the Company's financial stability had been ongoing since at least February 2025. On February 3, 2026, InvestmentNews.com published an article specifically naming Ford Elliott, Joshua Howard, Carlos Salgado, and Blackstream International Real Estate in connection with \$150 million litigation. On February 25, 2026, Ms. Lord formally flagged this crisis to her supervisor with a professional response toolkit (Exhibit G). On February 26, 2026, payroll was not made to any employees. On February 27, 2026, HR Director Aldridge issued a company-wide memo confirming that funds had been secured and payroll would be made. On March 3, 2026, the Company held an All Hands meeting whose first agenda item was a Legal Update.

Ms. Lord's statements were not false. They were prescient. The Company's selective application of its “false statements” policy—enforced against the one employee who had just filed a

discrimination complaint, while no other employee who discussed identical concerns was disciplined before, during, or after a company-wide payroll failure—is pretextual on its face.

D. The Simultaneous Elevation of Younger Employees on May 12, 2025

On the same day Ms. Lord signed her letter accepting the transition to Contender, internal emails and the Company website show Ms. Cape being promoted to Senior Graphic Designer and Brand Manager, and Ms. Wrenn being promoted to Director of Operations. A September 5, 2025 email from Christine Brodsky to a third party (Exhibit C) introduced Ms. Cape as Director of Marketing. These facts directly contradict Respondent’s claim that Ms. Lord’s role was not assumed by a younger employee, and they constitute the clearest possible evidence of disparate treatment by age.

VIII. CONCLUSION

Respondent’s position statement is carefully written but legally thin. It relies on denial of the central age-based remark, a legally defunct “same protected class” argument, a narrow focus on two employment actions while ignoring a documented pattern of a dozen more, and a procedurally inadequate internal investigation that accepted accused parties’ own denials as dispositive.

The record, viewed in its totality, establishes that Elizabeth Lord—a 74-year-old employee with more than three years of documented excellent performance—was systematically stripped of authority, excluded from strategic functions, denied basic resources, disciplined immediately following her protected discrimination complaint, and constructively demoted into a title with no practical function. Younger, less experienced employees received the substantive responsibilities taken from her, were elevated into roles duplicating her functions, and were explicitly introduced to third parties as holding her title. A senior executive who is also the CEO’s uncle made a direct age-based remark in her presence, in a meeting with the CEO and HR Director, on the day adverse action was taken. When Ms. Lord identified a reputational crisis threatening the Company and submitted a professional response toolkit to her supervisor the day before a company-wide payroll failure, she received no response—and was subsequently excluded from the Company’s own response to that crisis. Even the Company’s subsequent conduct validates rather than refutes the concerns for which she was disciplined.

Ms. Lord respectfully requests that the Commission proceed to a full investigation of this Charge and its companion charge against Blackstream International Real Estate (No. 436-2026-00698), and issue a cause determination. The evidence of age discrimination, hostile work environment, and retaliation under the ADEA is substantial and supported by the documentary record.

Respectfully submitted,

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